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| EXAMINER | |
|---|---|
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**Please find below and/or attached an Office communication concerning this application or proceeding.**

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

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| Office Action Summary | Application No. 19/223,431 | Applicant(s) Fang et al. | |
|---|---|---|---|
| | Examiner ADAM ALHARBI | Art Unit 3663 | AIA (First Inventor to File) Status Yes |

*-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --*

**Period for Reply**

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

**Status**

1)☑ Responsive to communication(s) filed on 5/30/2025.

☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2a)☐ This action is **FINAL.** 2b) ☑ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

**Disposition of Claims***

5) ☑ Claim(s) 1-22 is/are pending in the application.

5a) Of the above claim(s) _____ is/are withdrawn from consideration.

6) ☐ Claim(s) _____ is/are allowed.

7) ☑ Claim(s) 1-16 and 19-22 is/are rejected.

8) ☑ Claim(s) 17-18 is/are objected to.

9) ☐ Claim(s) _____ are subject to restriction and/or election requirement

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to **PPHfeedback@uspto.gov.**

**Application Papers**

10)☐ The specification is objected to by the Examiner.

11)☑ The drawing(s) filed on 5/30/2025 is/are: a)☑ accepted or b)☐ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

**Priority under 35 U.S.C. § 119**

12)☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

**Certified copies:**

a)☐ All b)☐ Some** c)☐ None of the:

1.☐ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

**Attachment(s)**

1) ☑ Notice of References Cited (PTO-892)

2) ☐ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b) Paper No(s)/Mail Date _____.

3) ☐ Interview Summary (PTO-413) Paper No(s)/Mail Date _____.

4) ☐ Other: _____.

## DETAILED ACTION

### *Notice of Pre-AIA or AIA Status*

The present application, filed on or after March 16, 2013, is being examined under the first inventor to file provisions of the AIA.

### *Status of Claims*

This Office Action is in response to the application filed on May 30, 2025. Claims 1-22 are presently pending and are presented for examination.

### *Double Patenting*

Claims 1, 5-6, 8, and 16-22 are provisionally rejected on the ground of nonstatutory double patenting as being unpatentable over claims 1, 4-6, 9-11, and 20 of copending Application No. 19/223,437 as follows:

| Instant Application's claims | Copending Application's claims |
|---|---|
| 1 | 1 |
| 5 | 6 and 20 |
| 6 | 5 |
| 8 | 4 |
| 16 | 1 and 9 |
| 17 | 1 and 9 |

| | |
|---|---|
| 18 | 9 |
| 19 | 9 |
| 20 | 10 |
| 21 | 10 |
| 22 | 11 |

Although the claims at issue are not identical, they are not patentably distinct from each other because the copending application claims recite substantially the same apparatus for policy-based collection of vehicle data from vehicle network zones in response to vehicle policy data and dynamically adjusting the collection of vehicle data based on operational conditions, trigger conditions, diagnostic information, and location-based criteria.

The current claims merely provide further details regarding specific types of policy data including a driver information description, a device condition description, an end point performance description, or a location description value, whereas claim 1 of the copending application broadly recites vehicle status data used to control vehicle data collection. The recited driver information descriptions, device condition descriptions, end point performance descriptions, and location description values represent types of vehicle status information that would have been obvious implementations of the vehicle status data of the copending application. Reference in under 35 U.S.C. 103 rejection below teaches the limitation and therefore it would have been obvious to modify the other application to include the limitation(s) in this application.

This is a provisional nonstatutory double patenting rejection because the patentably indistinct claims have not in fact been patented.

The nonstatutory double patenting rejection is based on a judicially created doctrine grounded in public policy (a policy reflected in the statute) so as to prevent the unjustified or improper timewise extension of the "right to exclude" granted by a patent and to prevent possible harassment by multiple assignees. A nonstatutory double patenting rejection is appropriate where the conflicting claims are not identical, but at least one examined application claim is not patentably distinct from the reference claim(s) because the examined application claim is either anticipated by, or would have been obvious over, the reference claim(s). See, e.g., In re Berg, 140 F.3d 1428, 46 USPQ2d 1226 (Fed. Cir. 1998); In re Goodman, 11 F.3d 1046, 29 USPQ2d 2010 (Fed. Cir. 1993); In re Longi, 759 F.2d 887, 225 USPQ 645 (Fed. Cir. 1985); In re Van Ornum, 686 F.2d 937, 214 USPQ 761 (CCPA 1982); In re Vogel, 422 F.2d 438, 164 USPQ 619 (CCPA 1970); In re Thorington, 418 F.2d 528, 163 USPQ 644 (CCPA 1969).

A timely filed terminal disclaimer in compliance with 37 CFR 1.321(c) or 1.321(d) may be used to overcome an actual or provisional rejection based on nonstatutory double patenting provided the reference application or patent either is shown to be commonly owned with the examined application, or claims an invention made as a result of activities undertaken within the scope of a joint research agreement. See MPEP § 717.02 for applications subject to examination under the first inventor to file provisions of the AIA as explained in MPEP § 2159. See MPEP § 2146 *et seq*. for applications not subject to examination under the first inventor to file provisions of the AIA. A terminal disclaimer must be signed in compliance with 37 CFR 1.321(b).

The filing of a terminal disclaimer by itself is not a complete reply to a nonstatutory double patenting (NSDP) rejection. A complete reply requires that the terminal disclaimer be accompanied by a reply requesting reconsideration of the prior Office action. Even where the NSDP rejection is provisional the reply must be complete. See MPEP § 804, subsection I.B.1. For a reply to a non-final Office action, see 37 CFR 1.111(a). For a reply to final Office action, see 37 CFR 1.113(c). A request for reconsideration

while not provided for in 37 CFR 1.113(c) may be filed after final for consideration. See MPEP §§ 706.07(e) and 714.13.

The USPTO Internet website contains terminal disclaimer forms which may be used. Please visit www.uspto.gov/ patent/patents-forms. The actual filing date of the application in which the form is filed determines what form (e.g., PTO/SB/25, PTO/SB/26, PTO/AIA/25, or PTO/AIA/26) should be used. A web-based eTerminal Disclaimer may be filled out completely online using web-screens. An eTerminal Disclaimer that meets all requirements is auto-processed and approved immediately upon submission. For more information about eTerminal Disclaimers, refer to www.uspto.gov/ patents/apply/applying-online/eterminal-disclaimer.

***Claim Rejections - 35 USC § 103***

In the event the determination of the status of the application as subject to AIA 35 U.S.C. 102 and 103 is incorrect, any correction of the statutory basis for the rejection will not be considered a new ground of rejection if the prior art relied upon, and the rationale supporting the rejection, would be the same under either status.

The following is a quotation of 35 U.S.C. 103 which forms the basis for all obviousness rejections set forth in this Office action:

> A patent for a claimed invention may not be obtained, notwithstanding that the claimed invention is not identically discloses as set forth in section 102, if the differences between the claimed invention and the prior art are such that the claimed invention as a whole would have been obvious before the effective filing date of the claimed invention to a person having ordinary skill in the art to which the claimed invention pertains. Patentability shall not be negated by the manner in which the invention was made.

The factual inquiries set forth in *Graham v. John Deere Co.*, 383 U.S. 1, 148 USPQ 459 (1966), that are applied for establishing a background for determining obviousness under 35 U.S.C. 103 are summarized as follows:

1. Determining the scope and contents of the prior art.
2. Ascertaining the differences between the prior art and the claims at issue.

3. Resolving the level of ordinary skill in the pertinent art.

4. Considering objective evidence present in the application indicating obviousness or nonobviousness.

This application currently names joint inventors. In considering patentability of the claims the examiner presumes that the subject matter of the various claims was commonly owned as of the effective filing date of the claimed invention(s) absent any evidence to the contrary. Applicant is advised of the obligation under 37 CFR 1.56 to point out the inventor and effective filing dates of each claim that was not commonly owned as of the effective filing date of the later invention in order for the examiner to consider the applicability of 35 U.S.C. 102(b)(2)(C) for any potential 35 U.S.C. 102(a)(2) prior art against the later invention.

**Claims 1 and 16 are rejected under 35 U.S.C. 103 as being unpatentable over U.S. Pub. No. 20160171793 (hereinafter, "Kim") in view of U.S. Pub. No. 20040267410 (hereinafter,"Duri").**

Regarding claim **1,** Kim discloses **an apparatus comprising:**

**a policy acquisition circuit structured to interpret a vehicle policy data value** ("an apparatus for processing logging policies includes: ...a logging policy interpreter configured to extract profile data, variable data, and policy data from the plurality of logging policies stored at the logging policy storage" (para 0007) and "The policy data may include information relating to at least one of a type and a characteristic of vehicle data to be collected" (para 0013))**...;**

**a policy processing circuit structured to generate, in response to and based at least in part on the vehicle policy data value** ("an integration logging policy generator configured to generate an integration logging policy based on the integration rule created by the logging policy analyzer" (para 0007))**, parsed policy data that comprises a vehicle data collection description** ("parsing, by a parser, the logging policies stored at the logging policy storage" (para 0022) and "The policy data may include

information relating to at least one of a type and a characteristic of vehicle data to be collected" (para 0013))**; and**

**a policy execution circuit structured to collect vehicle data … in response to the parsed policy data** ("the integration logging policy processor 60 collects vehicle data based on the integration logging policy generated by the integration logging policy generator 50" (para 0047))**.**

However, Kim does not explicitly teach

**a vehicle policy data value comprising … at least one of a driver information description, a device condition description, an end point performance description, or a location description value; and**

**… from one or more end points of at least one network zone of a vehicle …**

Duri, in the same field of endeavor, teaches

**a vehicle policy data value comprising … at least one of a driver information description, a device condition description, an end point performance description, or a location description value** ("The privacy policies can include various rules for selectively making telematics data available to the ASP's. For example, the rules can include, but are not limited to, temporal rules, geographic or location-based rules, event-based rules, and vehicle diagnostic rules" (para 0009))**; and**

**… from one or more end points of at least one network zone of a vehicle** ("The vehicle 105 can be equipped with sensors 110, 115, and 120 that can be communicatively linked with a communication bus 130 of the vehicle 105" (para 0030)).

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Duri in such that distribution of telematics data from vehicles to various ASP's can be performed with reference to the actual content of the telematics data as well as the type of telematics data received; see Duri at least at [0009].

Regarding claim **16,** Kim discloses **the apparatus of claim 1.** However, Kim does not explicitly teach **wherein the policy execution circuit is further structured to:**

**adjust the collection of vehicle data in response to the location description value; and prevent collection of at least a portion of the vehicle data in response to the location description value.**

Duri, in the same field of endeavor, teaches

**wherein the policy execution circuit is further structured to:**

**adjust the collection of vehicle data in response to the location description value** ("The privacy policy can specify which ASP is to receive telematics information, which items of telematics information are to be provided, during which times, and under what circumstances…a privacy policy can specify that a first ASP is to receive location information for a vehicle while the vehicle is within a first geographic region" (para 0079))**; and prevent collection of at least a portion of the vehicle data in response to the location description value** ("a data owners privacy policy includes an event-based constraint specifying that location data is to be released only if an airbag is deployed within the vehicle, but also includes a geographic, or spatial, rule specifying that location data should be released only if the vehicle is within New York" (para 0082))**.**

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Duri in order to select items of telematics data that can be provided to the requestor as specified by the privacy policy; see Duri at least at [0084].

**Claim 2 is rejected under 35 U.S.C. 103 as being unpatentable over U.S. Pub. No. 20160171793 (hereinafter,"Kim"), in view of U.S. Pub. No. 20040267410 (hereinafter,"Duri") as applied to claim 1 above, and in further view of U.S. Pub. No. 20190356574 (hereinafter,"Schoch").**

Regarding claim **2,** Kim discloses **the apparatus of claim 1.** However, Kim does not explicitly teach **wherein the one or more end points comprise end points positioned on at least two network zones of the vehicle.**

Schoch, in the same field of endeavor, teaches

**wherein the one or more end points comprise end points positioned on at least two network zones of the vehicle** ("the data network is divided into a plurality of security zones, within each of which at least one of the control devices is arranged...A security zone thus represents a segment in the data network to each of which at least one of the control devices is connected. The security zones are separated from each other in the data network but still coupled among each other for conditional message exchange" (para 0023))**.**

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Schoch in order to mutually protect the control devices; see Schoch at least at [0023].

**Claims 3 and 4 are rejected under 35 U.S.C. 103 as being unpatentable over U.S. Pub. No. 20160171793 (hereinafter,"Kim"), in view of U.S. Pub. No. 20040267410 (hereinafter,"Duri") as applied to claim 1 above, and in further view of U.S. Pub. No. 20110196571 (hereinafter,"Foladare").**

Regarding claim **3,** Kim discloses **the apparatus of claim 1.** However, Kim does not explicitly teach **wherein the driver information description comprises a description of vehicle data to be collected based on a driver characteristic, and**

**wherein the policy execution circuit is further structured to interpret driver information corresponding to a present driver of the vehicle, and to collect vehicle data in response to a comparison of the driver characteristic with the driver information corresponding to the present driver of the vehicle.**

Foladare, in the same field of endeavor, teaches

**wherein the driver information description comprises a description of vehicle data to be collected based on a driver characteristic** ("downloading a driver profile to a telematics device, collecting location and vehicle driving status information at the telematics device, and sending and

receiving messages to and from a remote server based on one of the driver profile, the location and vehicle status information" (para 0005))**, and**

**wherein the policy execution circuit is further structured to interpret driver information corresponding to a present driver of the vehicle** ("the driver authentication may be performed using bio-metrics, i.e, fingerprint or other scans, user driving patterns, authentication using a key fob or chip, or parental controls. Once authenticated, the telematics platform 302 may retrieve a user profile, which may, for example, identify the driver" (para 0017))**, and to collect vehicle data in response to a comparison of the driver characteristic with the driver information corresponding to the present driver of the vehicle** ("The telematics platform 302 authenticates the driver and retrieves a driver profile. The driver profile preferably has a list of approved access groups of individuals and the accessibility category...The telematics platform 302 will collect and tag various types of data, including vehicle operating data, vehicle maintenance data, location data, and other types of data...The data may be accessed by one or more of the approved access groups based on the permissions granted and the tags of the particular data. In an exemplary embodiment, a permissions log may be set up for each user profile" (para 0024))**.**

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Foladare in order to set up a permissions log for each user profile; see Foladare at least at [0024].

Regarding claim **4,** Kim discloses **the apparatus of claim 1.** However, Kim does not explicitly teach **wherein the driver information description comprises a description of monitoring data for a driver of the vehicle based on driver characteristics.**

Foladare, in the same field of endeavor, teaches

**wherein the driver information description comprises a description of monitoring data for a driver of the vehicle based on driver characteristics** ("The ecosystem may employ parental controls and

user profiles for each driver, including user profiles of parents, children, valet parkers, and even thieves. The ecosystem may provide feedback to the driver in real-time, quasi-real time, or non-real time reports. The feedback may be in the form of a visual display, including a traditional display or a heads up display, a mobile phone message, or an audio alert" (para 0021)).

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Foladare in order to impose other driving restrictions and set up notifications or alerts to measure compliance with such restrictions; see Foladare at least at [0022].

**Claims 5-15 are rejected under 35 U.S.C. 103 as being unpatentable over U.S. Pub. No. 20160171793 (hereinafter,"Kim"), in view of U.S. Pub. No. 20040267410 (hereinafter,"Duri") as applied to claim 1 above, and in further view of U.S. Pub. No. 20170264634 (hereinafter,"Carter").**

Regarding claim **5,** Kim discloses **the apparatus of claim 1.** However, Kim does not explicitly teach **wherein the driver information description further comprises a trigger condition, and wherein the policy execution circuit is further structured to collect vehicle data further in response to the trigger condition, and**

**wherein the trigger condition comprises at least one condition selected from the conditions consisting of:**

**an event detection condition;**

**a driver characteristic value;**

**a driver classification value; or**

**a driver performance value.**

Carter, in the same field of endeavor, teaches

**wherein the driver information description further comprises a trigger condition** ("an implementation may define one or more types of trigger events (with definitions stored in a trigger

event definition data store 430) and a workflow process (with processing definitions stored in a processing definition data store 435) that is to occur in response to detecting a defined event" (para 0058))**, and wherein the policy execution circuit is further structured to collect vehicle data further in response to the trigger condition** ("When a trigger event is detected, quality control resource 445 can retrieve one or more processing definitions from processing definitions data store 435 that correspond to a workflow associated with the event" (para 0059))**, and**

**wherein the trigger condition comprises at least one condition selected from the conditions consisting of:**

**an event detection condition; a driver characteristic value; a driver classification value; or a driver performance value** ("For example, a trigger event may include detecting a device interaction of a particular type (e.g., detecting a presence or communication from a new resource or agent device, receiving a new access request, and/or detecting that one device of sub-system 420 is attempting to write data to a data store), detecting a data change (e.g., via an alert from a sub-system device or via detecting a change in a data store, such as a modification of a previously stored data element or a storing of a new data element), detecting a change in an availability status of a resource, detecting at least a threshold number of resource-operation errors, and so on" (para 0058)).

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Carter such that the quality control resource can retrieve one or more processing definitions from processing definitions data store that correspond to a workflow associated with the event; see Carter at least at [0059].

Regarding claim **6,** Kim discloses **the apparatus of claim 5.** However, Kim does not explicitly teach **wherein the collected vehicle data further comprises a determination of an event occurrence in response to the trigger condition.**

Carter, in the same field of endeavor, teaches

**wherein the collected vehicle data further comprises a determination of an event occurrence in response to the trigger condition** ("The query may also be generated based on the detected trigger event. For example, the query may identify particulars of the trigger event (e.g., time and date, associated resource, associated agent, associated interaction, associated data change, etc.) as a constraint for the query (e.g., for data retrieval) or as a subject of the query. For example, in response to detecting that an agent device is requesting a new type of resource access, the query may be generated so as to retrieve data for all previous resource accesses made by the agent device, or the query may be generated to request a role, authorization level and years of experience of an agent associated with the agent device" (para 0060)).

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Carter such that the query may identify particulars of the trigger event as a constraint for the query (e.g., for data retrieval) or as a subject of the query; see Carter at least at [0060].

Regarding claim **7,** Kim discloses **the apparatus of claim 1.** However, Kim does not explicitly teach **wherein the device condition description comprises a description of monitoring data for a device of the vehicle.**

Carter, in the same field of endeavor, teaches

**wherein the device condition description comprises a description of monitoring data for a device of the vehicle** ("An operation monitor 440 can monitor operations and/or activities corresponding to sub-system 420 (e.g., resource performance, incoming communications, generated outputs, etc.) to determine whether any trigger event is detected." (para 0058)).

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Carter such that a sub-policy, and a workflow which includes

one or more executable rules to be automatically processed upon detecting a trigger event; see Carter at least at [0058].

Regarding claim **8,** Kim discloses **the apparatus of claim 7.** However, Kim does not explicitly teach **wherein the vehicle data collection comprises a description of the monitoring data for the device based on at least one of a device fault value or a device diagnostic value, and**

**wherein the description of the monitoring data comprises at least one data value selected from the data values consisting of:**

**a fault condition value;**

**a fault count value;**

**a diagnostic parameter value;**

**a fault confirmation value;**

**a diagnostic confirmation value;**

**a fault intermediate value; or**

**a diagnostic intermediate value.**

Carter, in the same field of endeavor, teaches

**wherein the vehicle data collection comprises a description of the monitoring data for the device based on at least one of a device fault value or a device diagnostic value** ("communications, sub-system loads, resource operations, and/or data stores may be monitored to determine whether any such device interaction(s) or data change(s) are detected. An exemplary type of event-corresponding device interaction may include a request communication being received from an unrecognized agent device or from an agent device that is not located at an on-site client location" (para 0090))**, and**

**wherein the description of the monitoring data comprises at least one data value selected from the data values consisting of:**

**a fault condition value; a fault count value; a diagnostic parameter value; a fault confirmation value; a diagnostic confirmation value; a fault intermediate value; or a diagnostic intermediate value** ("it is determined, based on the data log, whether a violation of the protocol has occurred. Determining whether the violation of the protocol has occurred can include determining whether an alert condition is satisfied... An alert condition may be defined based on (for example) input from an agent or a machine-learning process (e.g., that detects what types of log events are correlated with policy violations). An alert condition may be satisfied (for example) when a log includes a particular type of response, when at least a threshold number of one or more particular types of responses, and/or when a trend of a given type of responses is detected (e.g., an above-threshold change or acceleration in a number of responses of a given type)" (para 0096)).

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Carter such that a sub-policy, and a workflow which includes one or more executable rules to be automatically processed upon detecting a trigger event; see Carter at least at [0058].

Regarding claim **9,** Kim discloses **the apparatus of claim 7.** However, Kim does not explicitly teach **wherein the device corresponds to the at least one of a device fault value or a device diagnostic value, or**

**wherein the device comprises a separate device from a device corresponding to the at least one of the device fault value or the device diagnostic value.**

Carter, in the same field of endeavor, teaches

**wherein the device corresponds to the at least one of a device fault value or a device diagnostic value** ("communications, sub-system loads, resource operations, and/or data stores may be monitored to determine whether any such device interaction(s) or data change(s) are detected. An exemplary type of event-corresponding device interaction may include a request communication being

received from an unrecognized agent device or from an agent device that is not located at an on-site client location" (para 0090)), **or**

**wherein the device comprises a separate device from a device corresponding to the at least one of the device fault value or the device diagnostic value** ("A device interaction or data change detected at block 720 can include one that is initiated by (for example) execution of an application operating independently from and/or separate from another application for which execution facilitated or caused the detection at block 720 to be performed (and/or performance of one or more other blocks in process 700)" (para 0093)).

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Carter such that the application may be configured to provide an application programming interface; see Carter at least at [0093].

Regarding claim **10,** Kim discloses **the apparatus of claim 1.** However, Kim does not explicitly teach **wherein the end point performance description comprises a first data value to be collected in response to a target end point being in a first condition, and a second data value to be collected in response to the target end point being in a second condition.**

Carter, in the same field of endeavor, teaches

**wherein the end point performance description comprises a first data value to be collected in response to a target end point being in a first condition, and a second data value to be collected in response to the target end point being in a second condition** ("a trigger event may include detecting a device interaction of a particular type (e.g., detecting a presence or communication from a new resource or agent device, receiving a new access request, and/or detecting that one device of sub-system 420 is attempting to write data to a data store), detecting a data change (e.g., via an alert from a sub-system device or via detecting a change in a data store, such as a modification of a previously stored data element or a storing of a new data element)" (para 0058)).

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Carter in order to determine whether any trigger event is detected; see Carter at least at [0058].

Regarding claim **11,** Kim discloses **the apparatus of claim 10.** However, Kim does not explicitly teach **wherein the target end point in the first condition comprises a first vehicle configuration, and wherein the target end point in the second condition comprises a second vehicle configuration.**

Carter, in the same field of endeavor, teaches

**wherein the target end point in the first condition comprises a first vehicle configuration, and wherein the target end point in the second condition comprises a second vehicle configuration** ("security resource 150 may monitor equipment operation or agent instructions to determine whether any operations or instructions are atypical from one or more characteristics of previous instructions or correspond to satisfaction of an alert indication" (para 0029))**.**

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Carter in order to detect a potential threat decision; see Carter at least at [0029].

Regarding claim **12,** Kim discloses **the apparatus of claim 10.** However, Kim does not explicitly teach **wherein the target end point in the second condition comprises the target end point determined to be in an off-nominal condition, and**

**wherein off-nominal condition comprises at least one condition selected from the conditions consisting of: a failed condition, a faulted condition, a non-responsive condition, or a lost communication condition.**

Carter, in the same field of endeavor, teaches

**wherein the target end point in the second condition comprises the target end point determined to be in an off-nominal condition** ("security resource 150 may monitor equipment

operation or agent instructions to determine whether any operations or instructions are atypical from one or more characteristics of previous instructions or correspond to satisfaction of an alert indication" (para 0029))**, and**

**wherein off-nominal condition comprises at least one condition selected from the conditions consisting of: a failed condition, a faulted condition, a non-responsive condition, or a lost communication condition** ("trigger event may include detecting a device interaction of a particular type (e.g., detecting a presence or communication from a new resource or agent device, receiving a new access request, and/or detecting that one device of sub-system 420 is attempting to write data to a data store), detecting a data change (e.g., via an alert from a sub-system device or via detecting a change in a data store, such as a modification of a previously stored data element or a storing of a new data element), detecting a change in an availability status of a resource, detecting at least a threshold number of resource-operation errors, and so on" (para 0058))**.**

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Carter in order to to determine whether any operations or instructions are atypical from one or more characteristics of previous instructions or correspond to satisfaction of an alert indication; see Carter at least at [0029].

Regarding claim **13,** Kim discloses **the apparatus of claim 10.** However, Kim does not explicitly teach **wherein the target end point in the first condition comprises a first target end point configuration, and wherein the target end point in the second condition comprises a second target end point configuration.**

Carter, in the same field of endeavor, teaches

**wherein the target end point in the first condition comprises a first target end point configuration, and wherein the target end point in the second condition comprises a second target end point configuration** ("security resource 150 may monitor equipment operation or agent

instructions to determine whether any operations or instructions are atypical from one or more characteristics of previous instructions or correspond to satisfaction of an alert indication" (para 0029)).

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Carter in order to detect a potential threat decision; see Carter at least at [0029].

Regarding claim **14,** Kim discloses **the apparatus of claim 10.** However, Kim does not explicitly teach **wherein the first data value comprises data to be collected from a first end point group,**

**wherein the second data value comprises data to be collected from a second end pointgroup, and**

**wherein the first end point group and the second end point group comprise at least one distinct data value for collection.**

Carter, in the same field of endeavor, teaches

**wherein the first data value comprises data to be collected from a first end point group** ("First sub-system 110 can be configured to receive and respond to requests from user devices for content" (para 0019)),

**wherein the second data value comprises data to be collected from a second end point group** ("second sub-system 112 can be configured to dynamically monitor and re-configure network resources" (para 0019)), **and**

**wherein the first end point group and the second end point group comprise at least one distinct data value for collection** ("Each of the multiple sub-systems may (for example) be configured to perform a different type of operation, to use different resources (and/or different types of resources), to generate different types of outputs, to be located at different geographical locations, to correspond to (e.g., to grant access to) different agents or users (e.g., to different departments of an organization), and so on" (para 0019)).

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Carter in order to determine whether operation at one sub-system is consistent with operation at another sub-system or with system-level policies and/or to determine how one or more resources are to be allocated to a sub-system; see Carter at least at [0019].

Regarding claim **15,** Kim discloses **the apparatus of claim 10.** However, Kim does not explicitly teach **wherein the first data value comprises data to be collected from a first end point group,**

**wherein the second data value comprises data to be collected from a second end pointgroup, and**

**wherein the first end point group and the second end point group comprise at least one distinct end point.**

Carter, in the same field of endeavor, teaches

**wherein the first data value comprises data to be collected from a first end point group** ("First sub-system 110 can be configured to receive and respond to requests from user devices for content" (para 0019))**,**

**wherein the second data value comprises data to be collected from a second end point group** ("second sub-system 112 can be configured to dynamically monitor and re-configure network resources" (para 0019))**, and**

**wherein the first end point group and the second end point group comprise at least one distinct end point** ("Each of the multiple sub-systems may (for example) be configured to perform a different type of operation, to use different resources (and/or different types of resources), to generate different types of outputs, to be located at different geographical locations, to correspond to (e.g., to grant access to) different agents or users (e.g., to different departments of an organization), and so on" (para 0019))**.**

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Carter in order to determine whether operation at one sub-system is consistent with operation at another sub-system or with system-level policies and/or to determine how one or more resources are to be allocated to a sub-system; see Carter at least at [0019].

**Claims 19-22 are rejected under 35 U.S.C. 103 as being unpatentable over U.S. Pub. No. 20160171793 (hereinafter, "Kim") in view of U.S. Pub. No. 20040267410 (hereinafter,"Duri") as applied to claim 1 above, and in further view of U.S. Pub. No. 20180131538 (hereinafter, "Ando").**

Regarding claim **19,** Kim discloses **the apparatus of claim 1.** However, Kim does not explicitly teach **wherein the policy execution circuit is further structured to:**

**adjust the collection of vehicle data in response to the location description value; and**

**adjust a priority associated with at least a portion of the vehicle data in response to the location description value.**

Duri, in the same field of endeavor, teaches

**wherein the policy execution circuit is further structured to:**

**adjust the collection of vehicle data in response to the location description value** ("The privacy policy can specify which ASP is to receive telematics information, which items of telematics information are to be provided, during which times, and under what circumstances...a privacy policy can specify that a first ASP is to receive location information for a vehicle while the vehicle is within a first geographic region" (para 0079))**.**

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Duri in order to select items of telematics data that can be provided to the requestor as specified by the privacy policy; see Duri at least at [0084]**; and**

Ando, in the same field of endeavor, teaches

**adjust a priority associated with at least a portion of the vehicle data in response to the location description value** ("a relative priority (importance) of response requests from a plurality of request devices may be changed according to a position, a state, or the like of the vehicle, and therefore" (para 0020))**.**

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Ando such that the response request from the request device having the highest priority is preferentially transmitted to the control device; see Ando at least at [0007].

Regarding claim **20,** Kim discloses **the apparatus of claim 19.** However, Kim does not explicitly teach **wherein the priority comprises an on-vehicle data storage priority.**

Ando, in the same field of endeavor, teaches

**wherein the priority comprises an on-vehicle data storage priority** ("a storage unit configured to store priority information indicating a priority of the response request transmitted from each of the request devices" (para 0007))**.**

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Ando such that the response request from the request device having the highest priority is preferentially transmitted to the control device; see Ando at least at [0007].

Regarding claim **21,** Kim discloses **the apparatus of claim 19.** However, Kim does not explicitly teach **wherein the priority comprises a transmission priority.**

Ando, in the same field of endeavor, teaches

**wherein the priority comprises a transmission priority** ("the response request from the request device having the highest priority is preferentially transmitted to the control device when the response requests are transmitted from at least two of the request devices" (para 0007))**.**

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Ando such that the response request from the request device having the highest priority is preferentially transmitted to the control device; see Ando at least at [0007].

Regarding claim **22,** Kim discloses **the apparatus of claim 19.** However, Kim does not explicitly teach **wherein the priority comprises an on-vehicle transmission priority corresponding to at least one network zone of the vehicle.**

Ando, in the same field of endeavor, teaches

**wherein the priority comprises an on-vehicle transmission priority corresponding to at least one network zone of the vehicle** ("the priority setting processor 109 may be included in an external device that can communicate with the gateway ECUs 10 (the gateway ECUs 10A to 10C) that is mounted on the vehicle 100. In this case, the external device provided with the priority setting processor 109 transmits the priority information 1101 set and changed by the priority setting processor 109 to the gateway ECUs 10 (the gateway ECUs 10A to 10C)" (para 0129))**.**

One of ordinary skill in the art, before the time of filing, would have been motivated to modify the disclosure of Kim with the teachings of Ando such that the priority setting processor transmits the priority information set and changed by the priority setting processor to the gateway ECUs; see Ando at least at [0129].

### ***Allowable Subject Matter***

Claims **17** and **18** are objected to as depending on a rejected claim but may be found allowable if re-written in independent form including all intervening claims. Reasons for indicating allowable subject matter will be provided once one or more claims is in a state of allowance**.**

***Conclusion***

Any inquiry concerning this communication or earlier communications from the examiner should be directed to ADAM ALHARBI whose telephone number is (313)446-6621. The examiner can normally be reached on M-F 11:00AM – 7:30PM EST.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at http://www.uspto.gov/interviewpractice.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Abby Flynn can be reached on (571) 272-9855. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see https://ppair-my.uspto.gov/pair/PrivatePair. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/ADAM M ALHARBI/
Primary Examiner, Art Unit 3663